

		053 on Client and on the other parties in this action. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Client. The motion is GRANTED. The court notes the order relieving counsel shall not be effective until Attorneys file proof of service of the ruling on Client. Until such time, Attorneys shall remain counsel of record. <i>Attorneys are ordered to give notice of this ruling.</i>
2.	Taghavi v. Khanaman 24-1436503	The motion by attorney Pasha Vafaei to be relieved as counsel for plaintiffs Azam Firouzfard and Hossein Taghavi is DENIED, for the reasons set forth herein. <u>First</u>, there is no mention of the date, time or location of the hearing in either the notice of motion or declaration. <u>Second</u>, there is no proof of service for the motion. <u>Third</u>, there is no proposed order. <i>Rule 3.1362(d)</i> requires that "the proposed order must be served on the client and on all other parties who have appeared in the case." <u>Fourth</u>, counsel's declaration regarding service is insufficient. <i>Rule 3.1362(d)(1)</i> requires that "If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) The service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." Counsel states that he mailed notice to the clients at the last known address but that he has been "unable to confirm that the address is current or to locate a more current address for the client." (Declaration at Para. 3(b)(2).) However, counsel has failed to explain what "reasonable efforts" were made to determine the clients' addresses. The motion is therefore DENIED. <i>Attorney Pasha Vafaei is ordered to give notice of this ruling.</i>
3.	Capital One Bank (USA), N.A. v. Eckburg 17-922905	Before the Court is the unopposed Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement filed by Plaintiff Capital One Bank (USA), N.A. ("Plaintiff") against Defendant Caren Eckburg ("Defendant"). As more fully set forth below, the motion is DENIED. On 06/18/2026, the Court continued the hearing on the motion to 07/23/2026, and ordered Plaintiff to file and serve, no later than nine court days before the continued hearing date, a supplemental

		declaration showing that the Placentia address was Defendant's corrected address or otherwise establishing compliance with paragraph 9 of the Settlement Agreement. Plaintiff did not timely file the required supplemental declaration. Accordingly, the record does not establish compliance with paragraph 9 of the Settlement Agreement, and the motion is DENIED. <i>Plaintiff is ordered to give notice of this ruling.</i>
4.	Abawaji v. Andersen 25-1456264	The motion by plaintiff Abdulbasit Abawaji to set aside the dismissal entered on 1/30/26 is DENIED, without prejudice, as set forth herein. Plaintiff brings the instant motion pursuant to <i>Code of Civil Procedure §473(b)</i> which states in pertinent part as follows, "(b) The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." This action was initially set for a Case Management Conference (CMC) on 10/3/25. Plaintiff did not appear for the hearing and the Court scheduled an Order to Show Cause re: Why Sanctions in the Amount of \$500.00 Should Not Be Imposed on Plaintiff or Counsel for Plaintiff for Failure to Appear and Violating <i>Rule 3.110</i> for 11/21/2025. The CMC was also continued to 11/21/25. On 11/21/25, plaintiff again failed to appear at the CMC and did not respond to the Order to Show Cause. The court therefore ordered sanctions against Sargon Law Group P.C., and or Abdulbasit Abawaji in the sum of \$500.00, payable to Court by 12/22/2025. The Court also continued the CMC and set a further Order to Show Cause re: Why Additional Sanctions Should Not Be Imposed on Plaintiff and or Plaintiff's Counsel for Failure to Appear and Failure to Comply with <i>Rule 3.110</i> for 01/30/2026. On 1/30/26, plaintiff again failed to appear and did not respond to the OSC. Accordingly, the Court ordered the entire action dismissed without prejudice for Failure to Appear and Failure to Prosecute. In support of the instant motion, plaintiff submits the declaration of attorney Trevor Farrage. Mr. Farrage fails to explain why he failed to appear at the three hearings or why he did not respond to the OSC.